

26VECV00559 26VECV00559

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-14

Motion: DEFENDANT EZ PLUMBING AND ROOTER, INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

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Case Number: 26VECV00559 Hearing Date: August 14, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

KELLI DAVIS, an individual;

Plaintiff,

vs.

EZ PLUMBING
& ROOTER, INC., a California company; DOMINIC ANTHONY QUATTLEBAUM, an
individual; and DOES 1 through 20, inclusive,

Defendants.

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CASE

NO: 26VECV00559

[TENTATIVE]

ORDER RE: DEFENDANT EZ PLUMBING AND ROOTER,
INC.'S DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT

Dept.

I

DATE:

AUGUST 14, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: JANUARY 28, 2026

TRIAL

DATE: MARCH 24, 2027

I.

BACKGROUND

On January 28, 2026, Plaintiff Kelli Davis ("Plaintiff") filed a complaint against Defendants EZ Plumbing & Rooter, Inc. ("EZ Plumbing"), Dominic Anthony Quattlebaum ("Quattlebaum"), and Does 1 to 20 alleging four causes of action: (1) motor vehicle negligence; (2) general negligence; (3) negligent supervision and hiring; and (4) intentional infliction of emotional distress.

On May 7, 2026, Plaintiff filed her first amended complaint ("FAC").

On July 9, 2026, EZ Plumbing filed the instant demurrer to Plaintiff's FAC.

On July 30, 2026, Plaintiff filed her opposition.

On August 7, 2026, EZ Plumbing filed its reply.

II.

LEGAL

STANDARDS

Demurrer

A

demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General

demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); McKenney, *supra*, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (Blank, *supra*, 39 Cal.3d at 318.) The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (Ibid.) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (Semole v. Sansoucie (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (Frantz v. Blackwell (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (Holland v. Morse Diesel Intern., Inc. (2001) 86 Cal.App.4th 1443, 1447.)

CCP

§ 430.41 requires that “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” (CCP § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (CCP § 430.41(a)(2).) Thereafter, the demurring party shall file and serve a declaration detailing their meet and confer efforts. (CCP § 430.41(a)(3).)

When

a demurrer is sustained, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, *supra*, 39 Cal.3d 311, 318.) When a plaintiff “has pleaded the general set of facts upon which his cause of action is based,” the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not “be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars.” (Reed v. Norman (1957) 152

Cal.App.2d 892, 900.) Generally, the court will allow leave to amend on at least the first try, unless there is absolutely no possibility of overcoming the issue. (See *Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227 ["Denial of leave to amend constitutes an abuse of discretion unless the complaint shows on its face it is incapable of amendment. (Citation.) Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given."].)

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Cal. Code of Civ. Proc. § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id. at (b).) The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Ibid.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (CCP § 437.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768 ["When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend."].) The burden is on the complainant to show the Court that a pleading can be amended successfully. (*Blank, supra*, 39 Cal.3d 311, 318.)

Before filing a motion to strike, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike. (CCP § 435.5(a).)

III.

DISCUSSION

Meet and Confer

Defense counsel declares that, on June 15, 2026, the parties met and conferred regarding the instant demurrer and motion

to strike via telephone. (Fierro Decl. at ¶ 7.) The parties were unable to reach an agreement. (Ibid.) Accordingly, the Court finds that EZ Plumbing satisfies the meet and confer requirements of CCP §§ 430.41(a) and 435.5(a).

Demurrer

EZ Plumbing demurs

to Plaintiff's third cause of action for negligent hiring, retention, and supervision on the grounds that Plaintiff fails to allege facts sufficient to constitute a cause of action. (See Demurrer at p. 2.)

To successfully

plead a cause of action for negligent hiring, retention, and supervision, a plaintiff must allege ultimate facts showing that (1) defendant hired an employee; (2) who is incompetent or unfit; (3) the employer had reason to believe undue risk of harm would exist because of the employment; and (4) such harm occurs. (Federico v. Superior Court (1997) 59 Cal.App.4th 1207, 1213-1214.) "[T]he cornerstone of a negligent hiring theory is the risk that the employee will act in a certain way and the employee does act in that way." (Doe v. Capital Cities (1996) 50 Cal.App.4th 1038, 1054-1055.)

Here, Plaintiff pleads that, on July

9, 2025, she entered the US-101 southbound from an on-ramp located on Ventura Boulevard in Los Angeles, California, when Quattlebaum, while operating a vehicle owned by EZ Plumbing, began "honking at Plaintiff and flipping her off." (FAC at ¶ 9.) "Quattlebaum began driving erratically, nearly crashing into Plaintiff multiple times and screaming racial slurs and threats at her outside his vehicle's open window." (Id. at ¶ 10.) "Plaintiff called 911 to report Defendant Quattlebaum's erratic driving and racist attacks." (Id. at ¶ 11.) "Defendant Quattlebaum then stuck his hand out the driver's side window and hit Plaintiff's passenger side rear view mirror with his hand, causing the mirror to bend completely forward." (Id. at ¶ 13.) "Defendant Quattlebaum then drove past Plaintiff's vehicle on the right, then suddenly reversed but lost control of his vehicle, negligently causing the left side of his vehicle to collide with the passenger side of Plaintiff's vehicle." (FAC at ¶ 14.) "Defendant Quattlebaum then put his vehicle in park and began to open Plaintiff's front passenger door, causing Plaintiff to fear for her life and struggle in an attempt to keep the front passenger door closed." (Id. at ¶ 15.) "At the time of the collision, Defendant Quattlebaum was

driving in the course and scope of his employment with Defendant EZ Plumbing.”
(Id. at ¶ 18.)

Plaintiff further

pleads that “[p]rior to the incident alleged herein, and upon information and belief, Defendant Quattlebaum had a known or reasonably discoverable history of violent and assaultive conduct, including prior criminal convictions and/or charges involving domestic violence, corporal injury to a spouse or cohabitant/protective partner, and violations of restraining and/or protective orders. Said conduct reflected a propensity for violence, aggression, intimidation, and disregard for the safety and legal rights of others, including Plaintiff.” (FAC at ¶ 34.) “The violent and aggressive conduct committed by Defendant Quattlebaum against Plaintiff was reasonably foreseeable in light of his prior history of domestic violence, corporal injury, and violations of restraining/protective orders. The very harm suffered by Plaintiff was of the same general nature as the risk created by EZ Plumbing’s negligent hiring, retention, and supervision of Defendant Quattlebaum.” (Id. at ¶ 38.)

Based on the

foregoing, Plaintiff successfully pleads a cause of action for negligent hiring, supervision, and retention; specifically, Plaintiff pleads that EZ Plumbing employed Quattlebaum, with actual or constructive knowledge of his propensity for violence, and Quattlebaum then acted violently towards Plaintiff, causing her to suffer harm.

In its demurrer, EZ

Plumbing argues that “Plaintiff’s FAC is vague and ambiguous and does not state specific facts necessary to sustain a cause of action for negligent hiring and supervision because Plaintiff fails to state the relationship between Defendant QUATTLEBAUM and Defendant EZ-PLUMBING. Plaintiff’s FAC fails to state the role or position that Defendant QUATTLEBAUM was hired to perform for Defendant EZ-PLUMBING.” (Demurrer at 7:4-13.) However, Plaintiff need not state the specific role that Quattlebaum occupied; Plaintiff need only allege that EZ-Plumbing employed Quattlebaum, which it did. (See FAC at ¶¶ 9 and 18.) Additionally, upon a demurrer, a court must accept facts that are reasonably implied or inferred from those expressly alleged. (Lazar v. Hertz Corp. (1999) 69 Cal.App.4th 1494.) Here, it is a reasonable inference that Quattlebaum, while driving a van owned by EZ-Plumbing, was acting within the scope of his employment.

EZ-Plumbing further

argues that Plaintiff's claim fails because Plaintiff fails to plead actual notice of Quattlebaum's assaultive propensities. (See Demurrer at p. 9.) However, California law consistently supports that an employer's negligence in hiring, retention, and supervision rests on actual or constructive knowledge. (C.A. v. Williams S. Hart Union High School Dist. (2012)

53 Cal.4th 861, 869-871.) In fact, the very cases that EZ-Plumbing cites holds that an employer may be liable where it "knows the particular employee is unfit . . . or has reason to believe the employee is unfit for the position."

(Evan F. v. Hughson

United Methodist Church (1992)

8 Cal.App.4th 828, 843) (emphasis added.) Furthermore, Plaintiff also pleads actual knowledge. (See

FAC at ¶¶ 35-37.)

Notably, negligent hiring, supervision, and retention need only be pled in general facts. "Foreseeability is determined in light of all the circumstances and does not require prior identical events or injuries." (D.Z. v. Los Angeles Unified School Dist. (2019)

35 Cal.App.5th 210, 229.)

Based on the

foregoing, Defendant EZ-Plumbing's demurrer is overruled.

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IV. CONCLUSION

Defendant

EZ-Plumbing and Rooter, Inc.'s demurrer to Plaintiff's first amended complaint is OVERRULED.

EZ-Plumbing

to file an answer within 20 days of this order.

Dated: August

____, 2026

Hon. Karen Moskowitz

Judge of the Superior

Court